areas adjacent to the San Joaquin River Deep Water Channel except on permission in writing from the District Commander or Captain of the Port.

[Regs., May 16, 1955, 800.212 (San Francsco Bay, Calif.)—ENGWO] (Sec. 7, 38 Stat. 1053; 33 U. S. C. 471)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 55-4531; Filed, June 7, 1955; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1159]

ALASKA

AMENDING EXECUTIVE ORDER NO. 6973 OF FEBRUARY 19, 1935, WHICH WITHDREW PUBLIC LAND FOR A WILDLIFE ADMINISTRATIVE SITE

By virtue of the authority vested in the President by the act of June 25, 1910, ch. 421 (36 Stat. 847; 43 U. S. C. 141), as amended by the act of August 24, 1912, ch. 369 (37 Stat. 497; 43 U. S. C. 142), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The description of lands withdrawn for joint use and occupancy of the Department of Agriculture and the Alaska Game Commission as a headquarters site in connection with the Administration of the Alaska game laws, by Executive Order No. 6973 of February 19, 1935, is hereby amended to read as follows:

U. S. SURVEY NO. 3140 A AND B, ALASKA

TOWNSITE OF MCGRATH

Lot 4, Block 2, Tract A.

The area described contains 5.54 acres.

FRED G. AANDAHL,
Assistant Secretary of the Interior.

JUNE 2, 1955.

[F. R. Doc. 55-4533; Filed, June 7, 1955; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Docket No. 10832; FCC 55-640]

[Rules Amdts. 2-39, 3-47]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

PART 3—RADIO BROADCAST SERVICES

DENIAL OF PETITION; EXTENSION OF EFFECTIVE DATE

In the matter of amendment of Parts 2 and 3 of the Commission's rules and regulations and the Standards of Good Engineering Practice concerning FM Broadcast Stations to permit FM Broadcast Stations to engage in specified non-broadcast activities on a simplex and/or multiplex basis; Docket No. 10832.

1. The Commission has before it for consideration the petition filed May 3, 1955, by WWDC, Inc., licensee of Station WWDC-FM, Washington, D. C., requesting reconsideration and modification or waiver of the Commission's rules relating to functional music operation of FM broadcast stations; an Opposition to the WWDC petition filed on May 13, 1955, by the Good Music Station, Inc., licensee of WGMS-FM, Washington, D. C.; Joint Comments filed on May 16, 1955 by Multiplex Development Corporation and Multiplex Services Corporation; and Reply to Opposition filed by WWDC, Inc. on May 23, 1955.

2. On March 22, 1955, the Commission issued its Report and Order (FCC 55-340) in this proceeding amending its rules relating to the functional music operations of FM broadcast stations. On April 29, 1955, the Commission extended the effective date of the new rules to June 1, 1955. WWDC, Inc., by the instant petition requests that the Commission modify or waive these rules.

3. Following extensive rule making proceedings in which the comments of all interested parties were carefully considered, the Commission issued its Report and Order in this proceeding concluding that functional music operations conducted by FM broadcast stations did not constitute broadcasting within the meaning of the Communications Act. Nevertheless, the Commission adopted amendments to the rules which would permit FM broadcast stations to engage in functional music operations as an adjunct to their regular FM broadcast operations.

4. In the instant petition WWDC contends that functional music operations are broadcasting; that such operations do not violate any provisions of the Communications Act or the Commission's Rules or Regulations; and that enforcement of the rules at this time will retard the development of FM broadcasting. WWDC argues that the touchstone of the definition of broadcasting contained in the Communications Act and in earlier enactments dealing with radio is the "intent of the sender rather than the number of people receiving the matter broadcast or the methods of reception"; that "the intention of the sender must be determined from the inherent nature of the transmission and the circumstances surrounding its dissemination"; and WWDC submits that it intends its transmissions to be received by the public. It contends that only a small percentage of its revenue is derived from functional music operation and points to the results of listener surveys which it alleges indicate that its programming meets the needs, demands and requirements of a substantial segment of the public. WWDC states that WWDC-FM has suffered continuing operating losses since its inception, is now being operated at a loss and that its losses will be further increased if the rules are made effective at this time. It maintains that in order to comply with the rules, it must either multiplex its FM programs or delete 27 hours per week of its functional music activities; that multiplexing is impossible at this time because of the unavailability of equipment; and that the reduction in income which will necessarily result from a reduction in its functional music operations may necessitate termination of the services of WWDC-FM or the mere duplication of its AM programs.

5. In its opposition to the WWDC petition, WGMS opposes any modification of the rules which would permit functional music operations on any basis except that presently authorized and objects to any waiver on behalf of WWDC or any other station. WGMS contends that the Commission has twice decided that functional music operations are not broadcasting and that the WWDC petition has alleged nothing new in support of its contentions to the contrary. WGMS further submits that enforcement of the rules will not retard the development of FM or the development of functional music as such.

6. In their joint comments, Multiplex Development Corporation and Multiplex Services Corporation state that firm prices and delivery dates for multiplexing equipment are now available. They emphasize the importance of reasonable finality of the rules with respect to multiplexing.

7. Because it challenges the basic concept upon which the Commission's rules concerning the functional music operations of FM stations is founded, we shall first consider WWDC's contentions that functional music operations are broadcasting within the meaning of section 3 (o) of the Communications Act. This is not a novel question: It has been considered by the Commission on two previous occasions—once in connection with the issuance of the Notice of Proposed Rule Making in this proceeding and again in the Report and Order of March 16, 1955, which we are here asked to reconsider. In the Notice of Proposed Rule Making we expressed our view, based on the data then available to us, that functional music, while capable of being received by the general public, was not so intended and that these operations are essentially geared and directed to reception by the commercial institutions, stores, transit audiences, or other subscribers involved. We therefore concluded that functional music operations are predominatly non-broadcast in nature. However, in order that our ultimate determination might be based on complete and accurate information concerning the nature of functional music operations, we specifically invited comments concerning this question from all FM broadcasters and other interested parties. Extensive comments were filed. After careful consideration of the comments, including those submitted by WWDC, Inc., we again concluded that functional music operations are not broadcasting as defined by the act.

8. The substance of the arguments advanced by WWDC in support of its position that functional music operations are broadcasting within the meaning of section 3 (o) of the act are the same as those previously advanced by the petitioner, and others, in this proceeding. The only additional facts submitted by WWDC relate to its 1954-1955 revenues